STANDARD OPERATING PROCEDURE			P-6600
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA GREG LONDON SHERIFF	DATE ISSUED 08/13/07	DATE REVISED **03/12/24**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL: K-9 UNIT	RESOURCES			
SUBJECT CRITERIA FOR K-9 UNIT ACTIVATION		CROSS REFERENCE P-4220 BUILDING SEARCHES		

I. Purpose:

The purpose of this policy is to establish the guidelines for activating a K-9 team.

II. Policy:

The Sheriff's Office shall provide a professionally trained and maintained K-9 team(s) to assist in the daily operations of all divisions. A K-9 team shall be available twenty-four (24) hours a day for emergency situations that may require a K-9 response. Requests for immediate use of a K-9 team shall be made directly to the on-duty K-9 handler. If there is no K-9 handler on duty, the on-call K-9 handler shall be contacted. Other requests for the activation of a K-9 team shall be made through the K-9 Unit Commander. If the K-9 Unit Commander is unavailable, requests shall be made through the Patrol Division Commander. Deputies shall take care to prepare the incident scene for the arrival of a K-9 team according to the following procedures.

III. Procedure:

A. Requesting a K-9 Team:

1. Requests for the immediate services of an on-duty K-9 team by Sheriff's Office personnel shall be made directly to the K-9 handler.

2. Requests for the immediate services of an off-duty K-9 team by Sheriff's Office personnel shall be directed to their on-duty supervisor. The supervisor shall determine if a K-9 team is required and, if so, shall have Communications notify the on-call K-9 handler. If an off-duty K-9 team is requested by a supervisor, the on-duty watch commander or the ADC shall be notified.

3. Requests from other agencies to utilize an on-duty K-9 team shall be directed to the on-duty patrol supervisor or a command officer.

4. Requests from other agencies to utilize an off-duty K-9 team shall be directed to the on-duty patrol supervisor. If an off-duty K-9 team is requested by a supervisor for another agency, the on-duty watch commander or the ADC shall be notified.

5. If a K-9 handler is requested to perform a task for which his or her team is not certified, the K-9 handler shall advise the requesting party that the team is not certified for that task, but the K-9 Unit Commander may approve the use of the team for that application.

B. **Building Searches:** If there is a high probability that a suspect may still be inside a structure and the on-duty shift supervisor believes a K-9 team would be of assistance in clearing the structure, the following procedures shall be adhered to (see also P-4220 Building Searches):

1. The shift supervisor shall request the K-9 team as soon as possible.

2. A perimeter should be established around the building to prevent an escape. If it is safe to do so, open doors and windows should be closed on the building.

3. No one should enter the building prior to the K-9 team.

4. The responding K-9 handler shall be advised of the locations of perimeter personnel and any plain clothes law enforcement officers.

5. A deputy shall be assigned as the K-9 handler's back up during the search of the building. The back-up deputy shall:

a) Stay behind the K-9 handler and provide cover for the K-9 handler and K-9.

b) Stay with the K-9 handler at all times unless instructed otherwise by the K-9 handler.

c) Not interfere with the commands of the K-9 handler either to the K-9 or a suspect.

d) Only move toward or make contact with a suspect when directed to do so by the K-9 handler.

C. **Tracking and Area Searches:** If a shift supervisor believes a K-9 team would be of assistance in tracking or locating a suspect or missing person, the following procedures shall be adhered to:

1. The shift supervisor shall request the K-9 team as soon as possible.

2. Deputies shall not disturb the intended search area and, if known, shall note the last known location of the suspect. The K-9 handler shall be provided with this information to establish a possible starting point for tracking.

3. A perimeter should be established, when possible, around the area where the suspect is believed to be.

4. One or more deputies may be used to assist in the search. Deputies shall:

a) Stay behind the K-9 handler and provide cover for the K-9 handler and K-9.

b) Stay with the K-9 handler at all times unless instructed otherwise by the K-9 handler.

c) Not interfere with the commands of the K-9 handler either to the K-9 or a suspect.

d) Only move toward or make contact with a suspect when directed to do so by the K-9 handler.

e) Advise the K-9 handler immediately, if a deputy must stop or is unable to continue with the K-9 handler for any reason.

D. Criminal Apprehension by K-9: The following procedures shall be adhered to during K-9 apprehensions:

1. The K-9 handler shall, if feasible and safe to do so, warn the suspect(s) that a K-9 will be released if the suspect does not stop.

2. The K-9 handler shall not send the K-9 after a suspect if he or she is being directly pursued by a law enforcement officer.

3. The K-9 handler, upon release of the K-9, shall advise Communications that the K-9 has been deployed for an apprehension.

4. When a K-9 has been deployed for an apprehension, all deputies should stand still until instructed to move by the K-9 handler. Deputies should avoid moving between the K-9 and the suspect.

5. If a deputy is bitten by a K-9, he or she should stop moving and should not attempt to fight the dog or pull away. The K-9 handler will immediately call off the K-9. After the K-9 releases the bite, the deputy should not make any sudden movements and should follow the instructions of the K-9 handler.

6. Once the scene has been secured, a medic shall be contacted if necessary.

E. **Narcotics Detection:** It shall be the responsibility of the deputy requesting a K-9 team for narcotics detection to have a search warrant, a completed Consent to Search form, or probable cause prior to requesting a K-9 team.

1. **Searches of Vehicles:** When requesting a K-9 team for use in searching a vehicle suspected to contain narcotics, the following procedures shall be adhered to:

a) If a deputy has probable cause to search a vehicle for narcotics, a K-9 team should only be requested if it is believed there may be a large quantity of narcotics possibly hidden in a sealed compartment.

b) If a deputy has reasonable suspicion that there may be narcotics present, the deputy may detain the driver until a K-9 team arrives. The deputy shall articulate the level of reasonable suspicion to justify prolonging the duration of the traffic stop beyond the normal course (U.S. vs Rodriguez). Absent reasonable suspicion a deputy may request a driver wait for a K-9 to conduct a sniff. If the driver refuses to wait for the arrival of a K-9, he or she shall be released after the normal course of the traffic stop. The normal course of the traffic stop may include but, is not limited to: records check for vehicle, drivers and passenger(s), completion of citation, warning, and/or traffic card, FI card, etc.

c) The K-9 handler shall be responsible for ensuring that the narcotics detection is initiated at a safe location. No detection operations shall occur if the K-9 handler deems the area to be unsafe.

d) It shall be the responsibility of the requesting deputy and any other back-up deputies assigned to assist the K-9 team to maintain observation of any occupants of the vehicle.

e) If the interior of the vehicle will be entered by the K-9, the requesting deputy shall first take custody of any narcotics or paraphernalia in plain view. All occupants and food shall be removed.

2. **Searches of Buildings:** When requesting a K-9 team for use in searching a building suspected to contain narcotics, the following procedures shall be adhered to:

a) The requesting deputy and the K-9 handler shall conduct a search of the building. This search shall be conducted without the K-9 to take any narcotics or paraphernalia in plain view.

b) The K-9 handler shall ensure a safe working environment for the K-9. No detection operations shall occur if the K-9 handler deems the area to be unsafe.

c) All persons on the premises shall be removed or placed in one area prior to beginning the narcotics search. The only exception shall be in the event of a consent search. If the search is by consent, the owner or the owner's representative may be permitted inside the building. It shall be the responsibility of the requesting deputy or assigned back-up deputies to maintain observation of any occupants of the building.

3. The requesting deputy shall be responsible for taking custody of any suspects and evidence resulting from the K-9 search.